

PROPOSED CASE SUMMARY — MONETIZED PLATFORM-MEDIATED PARTICIPATION SYSTEMS

Core Claim

Participants are induced to enter **monetized platform-mediated systems**, including systems functioning as sexual labor markets, under **distorted entry conditions and material non-disclosure of foreseeable harm**, resulting in consistent, reproducible injury.

The issue is not participation itself, but **the absence of decision-usable risk disclosure at the point of entry**, preventing informed consent.

Proposed Defendants (Initial Scope)

- Platform operators facilitating and monetizing participation (e.g., subscription-based content platforms)
- Associated entities controlling:
 - visibility and access to buyers
 - payment processing
 - onboarding and informational conditions

(Initial targeting should be limited to 1–2 platforms for claim clarity.)

Proposed Class (Preliminary Definition)

Individuals who:

- entered **monetized platform-mediated participation systems**
- including systems functioning as sexual labor markets
- during a defined period
- without standardized disclosure of:
 - earnings distribution
 - income volatility and lifespan
 - reputational persistence
 - psychological and relational impact
- and subsequently experienced material harm consistent with those undisclosed risks

Legal Theories

- Failure to warn (foreseeable harm not disclosed)
 - Fraudulent omission / deceptive practices
 - Negligent misrepresentation
 - Unjust enrichment
 - Labor misclassification (where control and economic dependence are present)
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Factual Basis

1. **Distorted Entry Conditions**
Participation is preceded by amplified positive signals and absence of structured risk information, impairing accurate risk evaluation.
 2. **Material Non-Disclosure**
Platforms possess or can obtain outcome data (earnings distribution, attrition, lifecycle outcomes) but do not disclose it in decision-usable form at entry.
 3. **Institutional Non-Intervention**
Pre-entry environments do not translate known risks into actionable frameworks, leaving participants without interpretive tools.
 4. **Incentive Alignment With Non-Disclosure**
Revenue depends on participation volume and retention; outcome transparency would reduce entry and is therefore disincentivized.
 5. **Labor Function (Substantive Reality)**
Participation functions as **monetized sexual labor in substance**, requiring ongoing output, responsiveness to demand, and platform-mediated control, while avoiding corresponding classification, protections, and disclosure obligations.
 6. **Reinforcement and Lock-In**
Post-entry conditions (income instability, escalation pressure, reputational persistence) reduce exit viability and sustain participation.
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Causation

- Distorted and incomplete information at entry → impaired decision-making
- Entry under these conditions → participation without informed consent
- Participation → predictable and reproducible harms

Observed outcomes align consistently across participants, indicating **structural causation rather than individual variance**.

Damages (Categories)

- Reputational harm (persistent identity attachment)
- Economic harm (income instability, lack of sustainability)
- Psychological harm (trauma, distress)
- Relational harm (family and social disruption)

Why This Is Actionable

- Harms are **foreseeable and historically documented**
- Outcome patterns are **consistent and reproducible**
- Material information is **withheld or not operationalized at entry**
- Participation is **monetized while risk remains undisclosed**

→ This creates a condition where **consent is obtained without the information required to make an informed decision**

What Is Needed From Counsel

- Evaluation of claim viability under applicable jurisdiction
- Identification of strongest causes of action
- Selection of initial defendant(s)
- Guidance on class definition and certification strategy
- Direction on evidence standard and claimant intake

Status

- Full structural framework completed
- Supporting exhibits available:
 - participant outcome evidence
 - institutional response patterns
 - cross-exhibit causation linkage

Materials can be provided upon request.